Supreme Court Judgement: It directed that statutory status should be conferred upon the Central Vigilance Commission (CVC). It also issued directions to make the Central Bureau of Investigation (CBI) an autonomous body so that it can function effectively and efficiently and is viewed as a non-partisan agency. It issued the similar directions with respect to the Enforcement Directorate (ED). Further, it also struck down the validity of the arbitrary provision of Single Directive that required the CBI to obtain the prior permission of the Central Government before conducting an investigation against the officers of the rank of Joint Secretary and above.

Impact of the Judgement: This judgement led to the enactment of the CVC Act, 2003 that conferred the Statutory Status upon the CVC. Under this Act, the superintendence of the CBI in so far as it relates to the investigation of corruption cases has been vested in the CVC. Further, this Act also reinstated the provision of Single Directive that was again declared invalid by the Supreme Court in 2014 on the ground that it is violative of Article 14.

Association for Democratic Reforms Case (2002)

Name of the Case	: Union of India vs. Association for Democratic Reforms
Year of Judgement	: 2002
Popular Name	: Poll Reforms case
Related Topic/Issue	: Criminalization of politics
Related Article/Schedule	: 19

Supreme Court Judgement: It held that a voter has a right to know about the antecedents including criminal past of his candidate as part of his right under Article 19(1)(a) i.e., freedom of speech and expression. Voter's speech or expression in case of election would include casting of votes, that is to say voter speaks out or expresses by casting vote. For this purpose, information about the candidate to be selected is a must. Democracy cannot survive without free and fair elections, without free and fairly informed voters. Therefore, the court directed the Election Commission to make it mandatory for the candidates to furnish information on the following aspects: (a) Whether the candidate is convicted/acquitted/discharged of any criminal offence in the past – if any, whether he is punished with imprisonment or fine; (b) Prior to six months of filing of nomination, whether the candidate is accused in any pending case, of any offence punishable with imprisonment for two years or more, and in which charge is framed or cognizance is taken by the court of law. If so, the details thereof; (c) The assets (immovable, movable, bank balance, etc.) of a candidate and of his/her spouse and that of dependents; (d) Liabilities, if any, particularly whether there are any over dues of any public financial institution or government dues; and (e) The educational qualifications of the candidate.

Impact of the Judgement: As a sequel to this judgement, the Election Commission issued in 2003 an order[17] directing every candidate seeking election to the Parliament or a State Legislature to furnish on his nomination paper the information on the above (a) to (e) matters. Furnishing of any false information in the affidavit is now an electoral offence.

T.M.A. PAI Foundation Case (2002)